Nestle India Limited
Nestle House, Jacaranda Marg
M-Block, DLF City, Phase-II
Gurgaon 122002
India

Purchase order : 4550909382	Date: 16.05.2018 Printed: 18.05.2018
Vendor Number: 101023735 Nihva Technologies Pvt Ltd Coromant Housing Society House 8/1 Sector 27, Nigdi Pradhikaran Nigdi Pune 411044 India Tel:: 020 66304033 Fax: e-mail: sales@nihva.com GSTIN : 27AAECN0437H1ZM **Your reference:** **For the attention of:**	**Terms of Deliv.:** **Currency:** INR Indian Rupee **Delivery Date:** 30.06.2018 **Our Reference:** **Purchasing Contact:** IN Pon OB PrdQAEng Tel:
Deliver To: IN PL Ponda Plot No 294-297 Usgao Industrial Area PO Usgao Ponda 403406 India 00.000.000/0005-15 GSTIN : 30AAACN0757G1ZY	**Invoice To:** Nestle India Limited Plot No. 294-297, Usgao Industrial Area PO Usgao, Ponda - 403406, Goa GSTIN: 30AAACN0757G1ZY

The Nestle Supplier Code:

PO The Nestle Supplier Code establishes non negotiable minimum standards that we expect our suppliers to adhere to. The Code can be viewed on www.nestle.com/suppliers.

By acceptance of this purchase order the Supplier commits to the requirements stipulated in the Code. In case of non-compliance with or rejection of a requirement, the Supplier is obliged to notify the Nestle buyer.

Terms of Payment :

Inv received 01st to 03rd- Due on 27th same month
Inv received 04th to 18th- Due on 12th next month
Inv received 19th to EOM- Due on 27th next month

Nestle Pan No-AAACN0757G

"In case material is supplied without EWB, material will be accepted,
but risk of non-compliance will be on part of vendor and not Nestlé".

TERMS & CONDITION:

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REF:-SQT/17-18/0054R2 dtd 05/05/2018 and subsequent discussion dtd 16/05/2018 with Mr. Mayur derle.

Tax:- GST

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Item	Material No.	Vendor Mat. No.	HSN/SAC Code	Description	Quantity	Unit	Delivery Date & Time	Price/Unit	*Net Value

HSN/ SAC code need to mentioned on invoice.

Delivery Term - Door delivery fright paid basis.

Freight at actuals to the maximum of Rs 10000/- .

(A. Pls send material on freight paid basis and include freight in your invoice with proper supporting documents.)

GST will be applicable on fright cost.

PLEASE MENTION VENDOR NO, PAN CARD NO AND P.O NO ON THE INVOICE

Please acknowledge receipt. In case of any dispute or specific need to get a hard copy, please revert immediately"

For any query on your bills pls contact on the below

Mail ID : India.vendorservices@in.nestle.com
Phone No. (operational from 0930 Hrs to 1700 Hrs on working days) - Please note this service will be available only on working days

Shared Services Moga/Delhi 011-66074444.

10	90001381			Hydraulic Tilter Assembly (Make - Nihva)					
		1	each						
				Gross Price	160,000.00	INR	1 EA		160,000.00
				Freight (V)					10,000.00
				Assessable Value	170,000.00	INR	1 EA		170,000.00
				IN: Input IGST				18.00 %	30,600.00

Hydraulic Tilter Assembly (Make - Nihva)
Elsa Ganter Indexing Element
Elsa Ganter Revolving Ball Knob
Application : Chocolate Tray Tilting
All Material in SS 304
Sheet Plate : 50x10x2 meter
Hygiene Castor Wheels
Roller Track

20				Installation&Training Charges For Above					
		1.000	AU					5,000.00	5,000.00
				IN: Input IGST				18.00 %	900.00

Installation & Training Charges For Hydraulic Tilter Assembly

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Item	Material No.	Vendor Mat. No.	HSN/SAC Code	Description			
	Quantity	Unit		Delivery Date & Time		Price/Unit	*Net Value
The item covers the following services:							
10	105001142			Installation &Training Charges			
	1	EA				5,000.00	5,000.00

Total net value excl. tax	**175,000.00**
Total including tax	**206,500.00**

PO approved by

Rocky Agarwal 18.05.2018 11:09:14 CET

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Purchase Order Terms & Conditions

#Please peruse the terms and conditions of the purchase order since they have been modified on account of Goods & Services Tax#

(To which the Supplier agrees by accepting this Purchase Order)

1). Time of delivery shall be regarded as the essence of the Purchase Order. If the Supplier shall fail or neglect, to make the delivery within the time and in the manner herein specified the buyer shall be at the liberty to cancel the Purchase Order and the supplier shall be liable to pay the buyer damages for losses incurred. If however, the supplier is prevented by force majeure to make the delivery within the time and in the manner specified herein the buyer shall be at liberty to cancel the Purchase Order, without reference to any compensation.

2). Force majeure for the purposes of this Purchase Order shall mean riot, workers strike, mob violence, war, act of god or other irresistible force beyond ones control.

3). The Purchase Order shall not be billed at higher prices then quoted on this Purchase Order or altered in any respect without the buyer#s written consent. Prices on the supplier#s challan must agree with prices on this Purchase Order with subsequent alteration, which the buyer has agreed to in writing. Challan submitted without prices are subjected to the prices appearing on the Purchase Order or to subsequent alterations which the buyer has agreed to in writing.

4). The prices shown herein are, unless otherwise expressly mentioned, inclusive all the taxes, duties, cess etc. that may be levied / become leviable either now or latter and the buyer will not entertain any other / further claim for any supplier. The Buyer reserves the right to renegotiate the prices shown herein for input tax credits and efficiencies on account of GST available to Supplier, prior to the supply being made and to the extent of supply remaining to be made.

5). All materials will be subject to the buyer#s inspection and approval before acceptance. The supplier hereby warrants the merchandise and workmanship of material delivered and work performed, notwithstanding the buyer#s acceptance or use. The Purchase Order must be in accordance with specifications drawings or samples in all respects. No liability will be assumed for losses or consequences resulting from rejection of material at any stage.

6). If the supplies do not conform to clause 5 above, the buyer reserves the right to cancel the Purchase Order. Where not used, the supplier will have to make its own arrangements to remove the rejected materials at its own expense either from the buyer#s factory or from any other place of storage. Till they are not removed, the rejected materials will lie entirely at supplier#s risk and responsibility.

7). Collection and bank charges, if any, will be supplier#s account.

8). The goods should be packed securely according to the nature of material to be supplied and in accordance with the instructions to be given by the buyer.

9). This Purchase Order is subjected to the terms and conditions herein stated.

10). The materials to be supplied under this Purchase Order shall comply with all local legislation and regulations.

11). This Purchase Order can be cancelled by either of the party by giving 15 (fifteen) days written notice.

12). Supplier shall confirm the terms and conditions of this Purchase Order including the price, quantity, specifications and dispatch schedules.

13). Supplier shall provide a proper invoice in the form and manner prescribed under applicable GST Act(s) read with relevant Rules (GST Law), containing all the particulars mentioned therein. The Supplier shall upload the details of the supplies in prescribed Form/s on GSTN and pay the GST indicated on the invoice, within the time prescribed under GST Law. In case of any increase/ decrease in prices with respect to original invoice, returns, rejection or any other adjustment, credit note/ supplementary invoice, as the case may be, shall be issued by Supplier as per GST law. Supplier shall upload the details of credit note/ supplementary invoice in prescribed form on GSTN and pay the GST indicated on supplementary invoice, within the time prescribed under GST Law.

14). In case of any advance payment by the Buyer to the Supplier, the Supplier shall issue receipt voucher as per GST Law and pay tax, if prescribed and upload the details in prescribed Form/s on GSTN within the time prescribed under GST Law.

15). Supplier shall ensure compliances with all requirements under GST Law, including obtaining and maintaining a valid GST Registration for the place from where supply is made, documents and compliances mentioned in point 13 above, or other documentation/ compliances that may be applicable in such form and manner as may be prescribed under the GST Law that may be necessary to enable or assist the Buyer to claim or verify any input tax credit, set off, rebate or refund in relation to GST applicable in respect of any supply under this Purchase Order. Supplier shall promptly reconcile and resolve any mismatch or discrepancy, reflected through GSTN matching, to ensure that Buyer avails eligible credit without delay. The Buyer shall have a right to withhold any future amounts payable to the Supplier in the event there is any item reported in mismatch report, till the time the same is rectified by the Supplier in the GSTN.

16). In the event that input tax credit of the GST charged by Supplier is denied to Buyer due to any reason attributable to the Supplier, the Buyer shall be entitled to recover such amount from the Supplier by way of adjustment from any payments to the Supplier. In addition to the amount of GST, the Buyer shall also be entitled to recover interest payable under GST Law, and penalty, in case any penalty is imposed by the tax authorities on the Buyer.

17). In the event that the Supplier fails to comply with GST Law including obligations under point nos. 13 to 16 above, the Buyer shall not be liable to make any payment against such invoice and Supplier shall be solely responsible and liable for all consequences. In event the Supplier does not deposit GST, then without prejudice to provisions of point 16 above, the Buyer shall be entitled to terminate this Purchase Order with immediate effect and the Supplier shall be liable to pay such damages as may be reasonably estimated by the Buyer.

18). Any dispute arising out of this Purchase Order is subjected to the court in the State of Delhi.

19).As required under the provisions of Plastic Waste Management Rules, 2016 (PWM rules), it is the responsibility of all Vendors to ensure accurate and correct declaration of their name and registration number (as obtained from the respective State Pollution Control Board / appropriate Government Authorities under PWM Rules) in each and every single and multilayered plastic packaging

20). Customer Contact Centre is available at Shared Services as single point of contact to address Vendor queries and resolve them. Details are given below #
Mail ID : india.vendorservices@in.nestle.com
Phone No. 0124 640 7444 (operational from 0930 Hrs to 1700 Hrs). Please note this service will be available only on working days

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All invoices must bear Purchase Order number, Suppler Code and should be GST compliant. Invoices should reach at following address within 3(three) working days after receipt of material at relevant Nestlé site or rendering/ completion of the services:

Nestlé India Limited
Shared Service Centre
ASF Towers
Tower-A, Ground Floor,
Plot No. 249 E,
Udyog Vihar Phase IV,
Gurugram 122016

Nestlé India Limited (CIN: L15202DL1959PLC003786)
PAN Number: AAACN0757G
Registered Office: 100 / 101, World Trade Centre, Barakhamba Lane, New Delhi - 110 001
Website: www.nestle.in; Email : Corporate@in.nestle.com